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March 4, 2025

VIA EMAIL (secretary@fmc.gov)

Office of the Secretary
Federal Maritime Commission
800 North Capitol Street, N.W.
Washington, DC 20573
(202) 523-5725

Re: Request for Respondent's Reply to Complainants Exceptions to the Initial Decision to be Deemed Filed on March 3, 2025, or Otherwise Timely Filed
Dkt No: 23-04

Dear Office of the Secretary:

Further to my telephonic inquiry of this morning, I write to request that Respondent's Reply to Complainants' Exceptions to the Initial Decision be deemed filed on March 3, 2025, or otherwise be accepted as timely filed.

As you will have seen, yesterday evening, March 3, 2025, at approximately 9:52 pm, I, attempted to file on behalf of Respondent APS East Coast, Inc. ("APS") Respondent's Reply to Complainants' Exceptions to the Initial Decision in connection with the litigation in Docket No. 23-04, *Ports America Chesapeake and Marine Terminal Corporation – East v. APS East Coast, Inc.* As reflected in the email, the filing submission was intended to contain both the public and confidential version of the Reply, as well as a Motion for Confidential Treatment, and I believed that those materials had been attached.

I was alerted this morning to the fact that Complainants did not receive either the public or confidential Reply submissions. It appears now the Office of the Secretary did not receive the two versions of the Reply either, though the Motion for Confidential Treatment was received by Complainants' counsel, the Office of the Secretary, and the Office of Administrative Law Judges. Within minutes of being made aware of the issue, at 9:18 am, I sent both versions of the Reply along with the Motion for Confidential Treatment to Complainants' counsel, the Office of the Secretary, and the Office of Administrative Law Judges.

We did not review, edit, change, alter, or manipulate the Reply submissions in any way after what I thought was my email filing submission at approximately 9:52 pm on March 3, 2025. I attach to this letter a Declaration to that effect, and in any event the applicable metadata can confirm that to be true. Accordingly, Respondents were not advantaged in any way by the

time between when the filing of the Reply was attempted (March 3, 2025 at 9:52 pm) and the time when the Reply was ultimately received by the Office of the Secretary (March 4, 2025 at 9:18 am).

Upon investigation, we suspect that some technical issue in connection with our data protection and transfer system along with the act of attaching of multiple files to an email at one time may be the cause for the exclusion of both the public and confidential Reply from my March 3, 2025 email. I further learned this morning that other colleagues had similar issues with email attachments yesterday evening as well. Our IT department has been alerted to the issue and is in the process of investigating. Regardless, I am chagrined that I did not catch the issue last night, and I regret any inconvenience as a result of the issue. We have instituted an update to our checklist procedure for e-filing to ensure no such issue can occur undetected in the future.

We respectfully submit that in light of the issue described above, the *de minimis* amount of time involved, the fact that the Reply submission is not subject to a response by Complainants, and the lack of any impact on the Commission's schedule, Complainants' were not prejudiced by the brief overnight delay in receiving Respondent's Reply.

Accordingly, I respectfully request that Respondent's Reply to Complainants' Exceptions to the Initial Decision be deemed filed with the Office of the Secretary on March 3, 2025, or otherwise be considered timely filed.

As outlined above and in the attached declaration, good cause for this Request exists and the Presiding Officer is permitted, in accordance with 46 C.F.R. § 502.105, to enlarge the time limit for filing a Reply to Exceptions to the Initial Decision (46 C.F.R. § 502.227(a)(2)), waive the requirements of 46 C.F.R. § 502.102, in this case § 502.102(b), and rule *ex parte* on this Request.

In the alternative, the Commission may consider this letter as Respondent's Request to the Presiding Officer to Accept Late Filings in accordance with 46 C.F.R. § 502.102(b), in which case justice requires that Respondent's Reply to Complainants' Exceptions to the Initial Decision be accepted and considered in the Commission's review of the Initial Decision issued in FMC Docket 23-04.

Should the Commission require any additional formalities for the acceptance of Respondent's Reply, Respondents will comply promptly.

Respectfully submitted,



Peter F. Black
MILLS BLACK LLP

Counsel to APS EAST COAST, INC., *Respondents*

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST

COMPLAINANTS,

v.

APS EAST COAST, INC.

RESPONDENT.

DECLARATION OF PETER F. BLACK

I, Peter F. Black, hereby declare as follows:

1. I am over the age of eighteen and am competent to make this Declaration.
2. I am a Partner at Mills Black LLP, Counsel to the Respondent in FMC Docket Number 23-04, Ports America Chesapeake, LLC and Marine Terminals Corporation-East v. APS East Coast, Inc.
3. On the evening of March 3, 2025, I reviewed the final versions of Respondent's Reply to Complainants' Exceptions to the Initial Decision (the "Reply"). After that review, I attached both the confidential version and the public redacted version of the Reply along with an accompanying Motion for Confidential Treatment to an email to the Office of the Secretary of the Commission, the Office of the Administrative Law Judges, counsel for

Complainants, and my co-counsel in this matter. I sent the email at approximately 9:52 pm and waited for confirmation of receipt to ensure that the submission had been received. I received those confirmations shortly thereafter.

4. Accordingly, on March 3, 2025, I believed in good faith I had correctly filed by email both the public and confidential version of the Reply as well a Motion for Confidential Treatment, on or about 9:52 pm.
5. On March 4, 2025, at 9:11 am, Mr. Morrissey, Counsel to Complainants, notified me by email that he had not received the public and confidential version of Respondent's Reply to Complainants' Exceptions to the Initial Decision. Upon reviewing the submitted email, I confirmed that the Reply submissions had been stripped from the email or had otherwise failed to properly attach to the email.
6. At 9:18 am, I sent by email both the public and confidential version of Respondent's Reply, and the Motion for Confidential Treatment with attendant delivery receipts.
7. All three filings contain Certificates of Service identifying March 3, 2025 as the served date consistent with Respondent Counsel's prior belief and intention.
8. I did not review, edit, change, alter, or manipulate the Reply submissions in any way after my attempted email filing submission at approximately 9:52, March 3, 2025. The applicable metadata for both Reply files could provide confirmation if necessary.
9. Upon investigation, I learned that other colleagues at our firm had experienced similar email attachment issues around the same time last evening, where they attached PDF files to emails, but found that upon sending the emails, one or more of the PDF files had not attached to the emails. At this point, we are uncertain as to what would cause such a result, although we suspect it may be associated with some technical issue in connection

our data protection and transfer system. Our IT department has been alerted to the issue and is in the process of investigating.

10. Regardless of the cause, I am chagrined that I did not catch the issue last night, and I regret any resulting inconvenience. Although the late submission was inadvertent, I take it personally and seriously. I have instituted an update to our checklist procedure for e-filing to ensure no such issue can occur undetected in the future.
11. The Reply submissions are not subject to any responsive submission by Complainants, and therefore I do not believe that Complainants could have been prejudiced by the *de minimis*, unintentional delay.
12. Because all work was done on the Reply submissions by Monday evening and I believed that the Reply Submissions had been duly filed, no additional work on the Reply submissions was performed after the intended filing by email, and therefore Respondent did not obtain any benefit from the unintentional *de minimis* late submission.
13. In light of the issue described above, the *de minimis* amount of time involved, lack of response required by Complainants to Respondent's Reply, and lack of resulting impact on the Commission's schedule, Complainants' will not be prejudiced by the delay in receipt of Respondent's Reply.

I declare under the penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed this 4th day of March, 2025, in Washington, DC.

/s/ **Peter F. Black**
Peter Fischer Black

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Richard Ambrow - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. Gerald A. Morrissey III - *Counsel for Complainants*
HOLLAND & KNIGHT LLP
Gerald.morrissey@hklaw.com
4. Kristine O. Little - *Counsel for Complainants*
HOLLAND & KNIGHT LLP
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5. Carrol Hand - *Counsel for Complainants*
HOLLAND & KNIGHT LLP
carrol.hand@hklaw.com

Dated: March 4, 2025

Respectfully Submitted,

By: /s/ **Peter F. Black**

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